

STATE OF NEW YORK

7970--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to enacting the "Mohawk River Basin management act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Mohawk River Basin management act".

3 § 2. The environmental conservation law is amended by adding a new
4 section 11-0306-b to read as follows:

5 § 11-0306-b. Mohawk River Basin management program.

6 1. There is hereby established a Mohawk River Basin district which
7 shall include the Mohawk River from its headwaters in Lewis county to
8 its mouth at the Hudson River at Cohoes. The district shall include the
9 Mohawk River's watershed, including all tributaries and the portion of
10 the New York state Barge Canal that is in or connected to the Mohawk
11 River.

12 2. The department shall establish and maintain a Mohawk River Basin
13 management program for the Mohawk River Basin district, in order to
14 preserve, protect, restore and enhance the quality of the Mohawk River
15 Basin district, and to promote the integrated and coordinated management
16 of its watershed, with consideration to the Mohawk River's influence on
17 the Hudson River and estuary, as well as the influence of the New York
18 state Barge Canal.

19 3. The commissioner shall appoint a Mohawk River Basin management
20 advisory committee to provide guidance on regulatory, policy, and other
21 matters affecting the management, protection, and use of the Mohawk

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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River Basin district and to assist in the development of a Mohawk River Basin management program. The committee shall consist of not less than eleven members representing interests directly involved in the Mohawk River Basin district, including but not limited to representatives of drinking water suppliers, recreational fishing, recreational and commercial boating, tourism, research, conservation, natural resources management, agriculture and regional planning. The Mohawk River Basin management advisory committee shall also include ex-officio members of relevant state agencies and authorities, as determined to be needed by the commissioner by invitation. Representatives of relevant federal agencies may also be invited to participate as ex-officio members.

4. The commissioner shall maintain in the department the position of Mohawk watershed coordinator to assist the commissioner and the advisory committee in the implementation of the Mohawk River Basin management program.

5. The department, in cooperation with the Mohawk River Basin management advisory committee, shall publish an ecosystem-based management strategy for the Mohawk River Basin district and an action agenda to implement the identified management strategies. The action agenda should be updated by January first, two thousand twenty-eight and on a regular basis thereafter, at intervals not greater than ten years. Subject to consultation with the Mohawk River Basin management advisory committee, the management strategy and action agenda shall include, but not be limited to strategies to address issues related to climate change and resilience, land use and development, fisheries and habitats, point and non-point source pollution, drinking water, recreation and canal infrastructure. Subject to consultation with the Mohawk River Basin advisory committee, the management strategy and action agenda shall include, but not be limited to the following goals: improving water quality to reduce risks to human health, safeguard water supplies, provide safe recreational opportunities and protect aquatic habitats; enhancing fisheries and habitats to increase fish populations, mitigate the spread of invasive species and support recreational angling opportunities; supporting community planning and the sustainable use of working landscapes to enhance the resilience of Mohawk River communities and their ability to recover from extreme weather events and disturbances; and improving and increasing recreation and stewardship by creating and fostering partnerships and stakeholder engagement through education, outreach and collaboration.

6. Within one year of the effective date of this section, the Mohawk watershed coordinator appointed pursuant to subdivision four of this section shall develop a plan for the prevention of the proliferation of all taxa of aquatic invasive species in and through the Mohawk River Basin district, in consultation with the department, the New York state canal corporation, and the Mohawk River Basin program advisory committee. Such plan shall be submitted to the commissioner and the chairpersons of the assembly and senate committees on environmental conservation and posted on the department's website no later than one year after the effective date of this section. The plan shall identify strategies to prevent the passage of aquatic invasive species across historical watershed divides connected via the New York state Barge Canal. Such plan shall then be integrated into the action agenda developed under subdivision five of this section.

7. On or before January first of each year, the Mohawk watershed coordinator shall report on the progress of the Mohawk River Basin management program, including via a report submitted to the chairpersons of

1 the assembly and senate committees on environmental conservation on or
2 before March first of each year and posted on the department's website.

3 8. The Mohawk River Basin management advisory committee shall report
4 to the commissioner from time to time, and at least annually on or
5 before December first of each year on its activities, concerns, and
6 recommendations for the Mohawk River Basin district.

7 9. The Mohawk watershed coordinator shall consult with the Mohawk
8 River Basin management advisory committee regularly in preparing and
9 implementing the watershed management strategy and action agenda under
10 this section, as well as relevant regulatory or policy changes affecting
11 the Mohawk River Basin district.

12 § 3. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law. Effective immediately, the addition, amend-
14 ment and/or repeal of any rule or regulation necessary for the implemen-
15 tation of this act on its effective date are authorized to be made and
16 completed on or before such effective date.